IN THE HIGH COURT OF ORISSA AT CUTTACK
W.P.(C) No.18225 of 2022

In the matter of an application under Articles 226 and 227 of the Constitution of India.

Reena Nayak .... ***Petitioner***

-versus-

State of Odisha and Ors. .... ***Opposite Parties***

Advocates appeared in the case through Hybrid Mode**:**

For Petitioner : *Mr. Soumendra Pattanaik, Adv.*
Mr. A.K. Panigrahi, Adv.
Mr. P.K. Pasayat, Adv.

For Opposite Parties. : *Mr. Ch. Satyajit Mishra, AGA (for O.Ps.1 & 2)*
Mr. P.K. Parhi, DSGI (for O.P.3)
Mr. B. Routray, Sr. Adv. (for O.P.4)

CORAM:
Dr. JUSTICE S.K. PANIGRAHI

DATE OF HEARING:-28.02.2023
DATE OF JUDGMENT: -03.07.2023

Dr. S.K. Panigrahi, J.

1. In this Writ Petition, the Petitioner has challenged the action of Opposite Party No.1/ Principal Secretary, Food, Supplies and Consumer Welfare Department, Government of Odisha, Bhubaneswar in appointing the Opposite Party No.4 (Miss

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Sudhira Laxmi Pattnaik) as a Member, State Consumer Disputes Redressal Commission, Odisha, Cuttack in contravention of Rule 3(2)(b), 10 and other provision of Consumer Protection (Qualification for appointment, method of recruitment, Procedure of appointment, term of office, resignation and removal of the President and Members of State Commission and District Commission) Rules, 2020 (hereinafter referred to as "the Rules" for brevity) and the scrutiny committee without rejecting the applications of Opposite Party Nos.4 and 5 allowed them to appear in the written test as well as viva-voce ignoring the Petitioner. She has also prayed for quashing the appointment order dated 03.03.2022 issued in favour of the Opposite Party No.4 as a Member, State Consumer Disputes Redressal Commission, Odisha, Cuttack by the Opposite Party No.2/ DCA-cum-Joint Secretary, Food, Supplies and Consumer Welfare Department, Government of Odisha, Bhubaneswar.

I. FACTS OF THE CASE:

2. The fact of the case, in brief, is that the Opposite Party No.1/ Government of Odisha, Food, Supplies & Consumer Welfare Department published an Advertisement in daily Newspaper i.e. the Samaj, the Sambada, the Prameya and the New Indian Express on 23.08.2021 to fill up 4 post of Members in the State

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Commission, Odisha, Cuttack and President and Member of different District Commissions.

3. In pursuance of the said Advertisement dated 23.08.2021, the Petitioner along with other candidates had applied for the post of Member, State Consumer Disputes Redressal Commission, Odisha, Cuttack and appeared in the written examination held on 28.11.2021. The petitioner had cleared the written examination for the post of Member, State Consumer Disputes Redressal Commission and received intimation letter dated 25.01.2022 through e-mail and appeared in the interview conducted by Selection Committee held on 03.02.2022 at Odisha Judicial Academy Cuttack.

4. It is the case of the Petitioner that the Opposite Party Nos.4 and 5 were not eligible to appear in the written test and interview and their applications should have been rejected at the stage of scrutiny. However, the Opposite Party No.1 allowed them to appear in the written test as well as in the interview.

5. Pursuant to Clause-4A(i)(b) of the said long advertisement dated 23.08.2021, the Petitioner along with the Opposite Party Nos.4 and 5 applied for the post of Member, State Consumer Disputes Redressal Commission, Odisha, Cuttack. However, the Scrutiny Committee without rejecting the applications of the Opposite Party Nos.4 and 5 allowed them to appear in the written test as well as in the viva- voce and appointed the

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Opposite Party No.4 ignoring the Petitioner for said post. Hence, she is constrained to approach this Court.

II. SUBMISSIONS ADVANCED ON BEHALF OF THE PETITIONER:

6. Learned counsel for the Petitioner submitted that pursuant to the Advertisement dated 23.08.2021, the Petitioner had applied for said post and appeared in the written examination. She cleared the written test and on receipt of intimation letter dated 25.01.2022 through e-mail appeared in the viva-voce test. However, the Opposite Party No.1 ignoring the Petitioner selected/appointed the Opposite Party No.4 as a Member, State Consumer Disputes Redressal Commission, Odisha, Cuttack in contravention of Rule 3(2)(b) and 10 of the Rules. Rule-3(2)(b) of the said Rule provides as follows:

> *"a candidate must possesses bachelor's degree from a recognised university and is a person of ability, integrity and has special knowledge and professional knowledge and experience of not less than twenty years in consumer affairs, law, public affairs, administration, economics, commerce, industry affairs, law, public affairs, administration, economics, commerce, industry, finance, management, engineering, technology, public health or medicine".*

7. In view of the above provision of the Rules, the Opposite Party No.4 does not qualify the criteria laid down for appointment of the said post. Therefore, her application should have been

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rejected at the threshold of scrutiny stage. However, the selection committee mechanically scrutinized the candidature of the Opposite Party No.4 and selected her for the said post and issued the appointment letter.

8. The term of office of the President and Members has been elaborately mentioned under Rule-10 of the said Rules. Rule-10 of the said Rules provides as follows:

> *"**Terms of Office of President or Member**-The president and every member of the State Commission and the District Commission shall hold office for a term of four years or up to the age of sixty five years whichever is earlier and shall be eligible for reappointment for another term of four years subject to the age limit of sixty five years and such reappointment is made on the basis of recommendation of Selection Committee."*

9. In view of the above provision of the Rules, the Opposite Party No.4 is also not eligible to be appointed as a Member of State Consumer Disputes Redressal Commission, Odisha because she has already appointed for two terms as Member of District Consumer Forum, Kandhamal for the period from 15.12.2010 to 14.12.2015 and from 16.4.2016 to 15.4.2021. Similarly, the Opposite Party No.5 is also not eligible to be selected for written test and viva-voce for the said post because she has already appointed for two terms as Member of District Consumer Forum, Sundargarh and Bhubaneswar for the period from 15.12.2099 to 14.01.2004 and from

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08.02.2005 to 30.11.2009 respectively. However, they have been allowed to appear in the written test and viva-voce test in contravention of the mandate of Rule-10 of the Rules. Therefore, their applications should have been rejected at the threshold of scrutiny stage.

10. The Petitioner put forth the recital of Section-27 of the Consumer Protection Act, 2019 which encapsulates the meaning of Member appearing in Rule-10 of said Rules. A conjoint reading of the aforesaid two provisions i.e. Section-27 of the Consumer Protection Act, 2019 and Rule-10 of the Rules clearly hinges that member in anyone in District or State Commission. There is no distinction between the two Commission i.e. District Commission or State Commission. Therefore, the person who holds the office of member for one term not more than two terms and after expiry of one term subsequent term is by way of reappointment subject to condition of rule which inhibits the candidate not to be appointed for more than twice. Thus, the Opposite Party No.4 is not eligible to hold the said post which would amount to holding office of Member for 3rd term and is not at all permissible as per statute.

11. Learned counsel for the Petitioner further submitted that from the forgoing reasons the Opposite Party No.4 is also not eligible for not possessing the qualification for appointment to

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the post of Member of State Commission. In this regard, the Petitioner obtained the relevant document through R.T.I and perusal of the same goes to show that the Opposite Party No.4 has obtained the license from the Orissa State Bar Counsel in the year 2006 bearing Enrollment No-0-1482/2006 and soon thereafter for about 4 years, she was selected as Member of District Consumer Redressal Forum, Kandhamal and served the said post from 2010 to 2016. Thus, she had not possessed 10 years professional experience in the field of law when she was first selected as Member of District Consumer Redressal Forum, Kandhamal as per Section-10(b) of Consumer Protection Act, 1986. The second term is shortfall of 10 years as well as third term is also shortfall of 20 years of experience mandated by Rule 3(2)(b) of the Rules. Therefore, holding of office by Opposite Party No.4 from very inception till date. It is further submitted that it is not only false but also clear manifestation of illegalities actuated by the authorities.

12. It was further submitted that although the Opposite Party No.4 was appointed as Member of District Forum, Kandhamal from 2010 to 2015 and 2016 to 2021 and as a Member of State Commission from 2021 to till date without suspending her license, but she is still practicing as an Advocate in Ganjam Bar which is in violation of law as per the Consumer Protection Act and Rules framed thereunder. A

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person who has been appointed as full time Member of the District Consumer Commission and State Consumer Commission cannot continue his/her practice as an Advocate during the relevant period. However, the Opposite Party No.4 is still continuing her practice as a Lawyer.

13. It was also submitted that it clearly reveals from the photo copy of information received under RTI Act that Opposite Party No.4 is still practicing as an Advocate. She has suppressed the said facts to the State Government and violated the provision of law. So, her conduct is doubtful. Therefore, necessary action be taken against the Opposite Party No.4 as she is liable to be removed from her service for misconduct and suppression of facts. The person holding a Government post/Public Office as a Member of State Consumer Commission at a time cannot practice as an Advocate in any court of law.

14. It was submitted that the Opposite Party No.4 in her counter affidavit is silent about the possession of experience of 20 years as per Rule 3(2)(b) of said Rules. She has only stated that she has requisite qualification and experience. However, the learned Senior Counsel for the Opposite Party No.4 at the time of argument submitted that the experience of the Opposite Party No.4 is coming under Rule-3(2)(a) of said Rule which is false because the Opposite Party No.4 had appointed

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as Member of District Consumer Redresal Forum, Kandhamal. Neither was she holding the Office as Presiding Officer of any Court nor Tribunal or equivalent to the Tribunal. Thus, she is not falling under Rule 3(2) (a) of the said Rules. Learned counsel for the Petitioner also placed reliance on the decision of the Supreme Court in the cases of ***Yogeeta Chandra v. The State of Uttar Pradesh and Anr***. [1] and ***Satish Chandra Yadav v. Union of India and others***[2] to buttress his submissions.

III. SUBMISSIONS ON BEHALF OF THE OPP. PARTY NOS.1 & 2:

15. Learned counsel for the Opposite Party Nos.1 and 2/ Stated submitted that the Opposite Party Nos.4 and 5 were found eligible by the Scrutiny Committee, as a result of which, Opposite Party No.1 allowed them to appear in the written test as well as in the interview. Therefore, the action taken thereon cannot be construed as illegal and arbitrary.

16. He further submitted that the Petitioner has misinterpreted the provisions of Rules which may be summarized herein below:

    i. Nowhere, it has been mentioned that one has to serve one term as Member (W) in the State Commission to be selected for the 2nd term. The Petitioner has not served

[1](Decided on 20th Feb., 2023 in Special Leave Petition (Civil) Nos. 4860-4861/2019)
[2] 2022 SCC OnLine SC 1300

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even one term in the State Commission prior to appear in the written test and interview.

ii. In sub-para-2 of para-9 of the Writ Petition, the Petitioner has misinterpreted and misconstrued the provisions under the Rules that professional experience of 20 years lacks is lacking on the part of the Opposite Party Nos.4 and 5. Under sub-rule (2) of Rule 3 of the Consumer Protection (Qualification for appointment, method of recruitment, procedure of appointment, term of office, resignation and removal of the President and members of the State Commission and District Commission) Rules, 2020 it has been envisaged that an applicant has to be a bachelor's degree from a recognised university and is a person of ability, integrity and standing, and has special knowledge and professional experience of not less than twenty years in consumer affairs, law, public affairs, administration, economics, commerce, industry, finance, management, engineering, technology, public health or medicine. In the instant case, both the Opposite Party Nos.4 and 5 have special knowledge and professional experience, for which, the Scrutiny Committee has found them eligible for the post of

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Member (W) in State Commission and allowed them to appear in the written test as well as the interview.

iii. The Opposite Party Nos.4 and 5 have not applied for 3rd term of the Member (W) in State Commission which is in contravention of Rules. They have not served even a single term in State Commission prior to making application for the post.

17. It was further submitted that the Opposite Parties/ State have never made any illegalities in selecting the Opposite Party No.4 for the post of Member(W) in State Commission. Nowhere, the mandate of the provisions made under sub-rule 2 (b) of Rule 3 and Rule 10 of the Consumer Protection (Qualification for appointment, method of recruitment, procedure of appointment, term of office, resignation and removal of the President and members of the State Commission and District Commission) Rules, 2020 have been ignored in selecting the Opposite Party No.4 for the post of Member (W) in State Commission.

18. It was also submitted that the Petitioner has tried a lot to dilute the provision made under Rule 10 of the Consumer Protection (Qualification for appointment, method of recruitment, procedure of appointment, term of office, resignation and removal of the President and members of the State Commission and District Commission) Rules, 2020. The

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provisions made under Rule 10 of the aforesaid Rules is very clear which has been extracted below.

> *"The President and every member of the State Commission and the District Commission shall hold office for a term of four years or up to the age of sixty-five years, whichever is earlier and shall be eligible for reappointment for another term of four years subject to the age limit of sixty five years, and such reappointment is made on the basis of the recommendation of the Selection Committee."*

In the Rule, it has been clarified that one can serve two terms in the State Commission and two terms in the District Commission as State Commission is a different entity from that of District Commission and both the Commissions cannot be tagged into one. Moreover, State Commission is the Appellate Authority in respect of all District Commissions, for which, its status cannot be at par with District Commissions. That apart, the provisions for qualification, experience and service conditions emoluments etc. of State Commission is different from that of District Commission. Thus, a person serving two terms in District Commissions cannot be debarred from serving in State Commission.

19. He further submitted that the Opposite Party Nos.4 and 5 being found eligible in all respects by the Scrutiny Committee duly constituted on the recommendation of Selection

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Committee, allowed to appear in the written test as well as interview as per the procedure laid down under the Rules.

20. It was submitted that the Opposite Party No.4 though served two terms in District Commission has not served even a single term as Member (W) in State Commission and, therefore, found suitable for the said post as per the Rules.

21. The Opposite Party No.4 has not been selected as Member (W) for the 3rd term in District Commission as she has served two terms in District Commission and appointed for 1st term in the State Commission. Hence, it cannot be said that the Opposite Party No.4 has been selected for 3rd term. The allegation by the Petitioner is misconstrued and bereft of any logic.

22. The Scrutiny Committee after verifying all the records pertaining to the qualification and experience of the Opposite Party No.4 recommended to appear in the written examination. Thus, the Opposite Party No.4 possess required qualification and experience as prescribed under the Rules.

23. It was also submitted that the Petitioner has tried a lot to drag the Opposite Party No.5 into the conflict who has been placed at Serial No.10 of the merit list after the interview taken by the Selection Committee but could not succeed to join in the post. The petitioner who has appeared in the written test as well as interview has also been placed at Serial No.12 in the merit list.

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24. It was submitted that under Rule-6 of the Consumer Protection (Qualification for appointment, method of recruitment, procedure of appointment, term of office, resignation and removal of the President and members of the State Commission and District Commission) Rules, 2020, a Selection Committee has been constituted under the Chairmanship of a sitting Judge of Orissa High Court and on the advice of such Selection Committee, a Scrutiny Committee with senior level officers including senior Judicial Officer has scrutinized the applications so received for the post of Member (W) in State Commission. Therefore, the allegation made by the Petitioner that illegality and arbitrary has been made is false and fabricated and cannot be sustainable.

25. It was also submitted that the Opposite Party Nos.4 and 5 and the Petitioner after the written test as well as interview which was conducted under the direct supervision of the Selection Committee chaired by a Sitting Judge of Orissa High Court were empanelled at Serial No.03, 10 and 12 respectively. The Petitioner has tried to make allegation against the entire selection process is ill-intentioned and baseless. Therefore, this Court should dismiss the Writ Petition with cost.

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IV. SUBMISSIONS ON BEHALF OF THE OPPOSITE PARTY NO.3:

26. Learned counsel for the Opposite Party No.3 submitted that the Rule-10 of the Rules provides as under:

> *"**Term of office of President or Member**-(1) The President of the State Commission shall hold office for a term of four years or upto the age of sixty-seven years, whichever is earlier and shall be eligible for reappointment for another term of four years subject to the age limit of sixty-seven years, and such reappointment shall be made on the basis of the recommendation of the Selection Committee.*
> *(2) Every member of the State Commission and the President and every member of the District Commission shall hold office for a term of four years or upto the age of sixty-five years, whichever is earlier and shall be eligible for reappointment for another term of four years subject to the age limit of sixty-five years, and such reappointment shall be made on the basis of the recommendation of the Selection Committee."*

27. From examination of the Petition, it appears that the Opposite Party No. 4 has been appointed for the first term in the State Commission, Odisha as Member (Woman). Earlier she had worked for two terms in the District Commission, Kandhamal in Odisha. The fact that she worked for earlier two terms in the District Commission, Kandhamal does not debar her for appointment to the post of Member (Woman) in State Consumer

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Disputes Redressal Commission, Odisha, in terms of provision of the aforesaid Rules. Prior to her appointment to the post of Member (Woman) in the State Commission, Odisha, the Opposite Party No. 4 held the post of Member, District Forum, Kandhamal for two terms. The appointments were made by the State Government under the provisions of the Rules framed under the Consumer Protection Act, 1986. The instant appointment to the post of Member (Woman) in the State Commission was made under the provisions of the Consumer Protection (Qualification for appointment, method of recruitment Procedure of appointment, term of office, resignation and removal of the President and Members of State Commission and District Commission) Rules, 2020 framed under the provision of the Consumer Protection Act. 2019. The appointments made by the State Government under the provision of the Consumer Protection Act, 1986 cannot be correlated to this case. As such, her appointment as Member (Woman) in the State Commission is not in violation of Rule 10 of the aforesaid rules. In the instant case, the Opposite Party No. 4 has been appointed as Member (Woman) in the State Commission for the first term.

28. The fact of working for two terms earlier as Member in some other District Consumer Commission does not debar the Opposite Party No. 4 to be appointed for the first time in the

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State Consumer Disputes Redressal Commission as Member (Woman). As regards lack of qualifications etc., in respect of the Opposite Party No. 5, it is for the State Government to reply.

29. It was submitted here that the Opposite Party No. 4 has been appointed as Member (W) in the State Commission for the first time, which is in order insofar as the provision of Rule-10 of the Rules is concerned. As regards the professional experience and special knowledge, it is for the State Government to reply. They have applied for the first term in the State Commission and not for the third term.

30. As regards to violation of Rule 3 and Sub-Rule 3(b), it is for the State Government to reply. However, the provision of Rule-10 of the Rules has not been violated in appointing the Opposite Party no.4 for the first time in the State Commission as Member (W) by the Opposite Party No.2.

31. In fact, Rule-10 of the Rules has been misinterpreted. District Commission Kandhamal and State Commission, Odisha are two different types of quasi-judicial bodies and separate establishments. The terms of appointment made are different under two different Acts i.e. Consumer Protection Act, 1986 and Consumer Protection Act, 2019. It is wrong to say that appointment of the Opposite Party No.4 as Member (W) in the State Commission is the third term of appointment.

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32. The Opposite party No.5 worked for two terms in District Forum, Sudargarh and Bhubaneswar does not debar her to be called for interview for the post of Member (W) in the State Commission. In such view of the matter, it was submitted that this Court may be pleased to dismiss the Writ Petition as the same is devoid of any merits.

V. SUBMISSIONS ON BEHALF OF THE OPPOSITE PARTY NO.4:

33. Learned Senior Counsel for the Opposite Party No.4 submitted that the Petitioner in the present Writ Petition has challenged the very action of the Opposite Party No.1 in appointing the Opposite Party No.4 as Women member of State Consumer Disputes Redressal Commission, Odisha, Cuttack in contravention of Rule 3(b) and 10 of Consumer Protection (Qualification for appointment, method of recruitment, Procedure of appointment, term of office, resignation and removal of the President and Members of State Commission & District Commission) Rules, 2020.

34. He submitted that the main contention of the Petitioner is that the Opposite Party no.4 has not satisfied the requisite qualification and experience in terms of Rule 3 (2) (b) of the Rules as she does not possess any special knowledge and professional experience of twenty years as has been prescribed under the said Rules. However, the fact remains the present

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Opposite Party No.4 not only possess the bachelor degree in B.Sc but she has also done her L.LB from Berhampur University and joined as Lawyer in the Bar of Ganjam Bar association. So far as special knowledge and professional experience of not less than twenty years is concerned, the present Opposite Party No.4 has remained as Member of District Consumer Forum for two terms (10 years) and that being coupled with the her experience as Lawyer and more than 10 years social work in public affairs. Therefore, her total special knowledge and professional experience is about 24 years which is more than twenty years as has been prescribed under the Rules. The work experience certificates issued in favour of the Opposite Party No.4 is appended herewith as Appendix-I and the copy of orders depicting appointment of the Opposite Party No.4 as Member for two terms in District Consumer Forum is appended herewith as Appendix-II which were provided by the Opposite Party No.4 while submitting her application. The same has been considered by the Scrutiny Committee and only after detailed scrutiny she was allowed to appear in the written and Viva-Voce test and, thereafter, she was found eligible to be appointed as Member by the Selection Committee. The said fact has also been reiterated in the Counter-affidavit filed by the State Government.

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35. It was also submitted that the second bone of contention raised by the Petitioner against the Opposite Party No.4 was that as she has served two terms as Member in District Consumer Disputes Redressal Commission, Kandhamal, she is not eligible to be appointed as Women member of State Consumer Disputes Redressal Commission, Odisha in contravention to Rule-10 of the Rules, as she has already served two terms in District Forum. To that effect, it was submitted that from the bare perusal of Rule-10 of the Rules, it is clear that there is no specific bar for appointment of any member who has served as Member in any District Forum for two terms cannot be appointed as a Member in State Consumer Commission. Further, the present Opposite Party No.4 has never been reappointed as Member in State Consumer Commission. Rather, in terms of Rule-6 of the Rules, the present Opposite Party No.4 appeared in written examination along with other candidates and after being declared meritorious in written examination she was allowed to appear in Viva-Voce. Thereafter, keeping in view her marks secured in written examination as well as viva voce, she was selected by the Selection Committee headed by the sitting Judge of this Court as Member (Woman) of the State Commission.

VI. COURT'S REASONING AND ANALYSIS:

36. Heard learned counsel for the Parties. Perused the Writ Petition and all the documents available on records.

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37. It is apparent from the records that the Opposite Party No.4 has not been selected as Member (W) for the 3rd term in District Commission as she has served two terms in District Commission and appointed for the 1st term in the State Commission. Under the Rule-10, there is no specific bar for appointment of any member who has served as Member in any District Forum for two terms as a Member in State Consumer Commission. Moreover, the Scrutiny Committee after verifying all the records pertaining to the qualification and experience of the Opposite Party No.4, have recommended to appear for the written examination. Thus, the Opposite Party No.4 possesses the required qualification and experience as provided under the Rules. So far as the other qualification and experience of the Opposite Party No.4 is concerned, as prescribed under Rule 3 (2) (b) of the Rules, the Opposite Party No.4 possesses the bachelor degree in B.Sc and L.LB from Berhampur University and joined as Lawyer in Ganjam Bar Association. So far as special knowledge and professional experience of not less than twenty years is concerned, the present Opposite Party No.4 has served as Member of District Consumer Forum for two terms (10 years) and coupled with her experience as Lawyer and more than 10 years social work in public affairs. Therefore, her total special knowledge and professional experience is about 24 years

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which is more than twenty years as has been prescribed under the Rules. The said facts are substantiated from the work experience certificates issued in favour of the Opposite Party No.4 and the copy of orders depicting appointment of the Opposite Party No.4 as Member for two terms in District Consumer Forum. The same has been considered by the Scrutiny Committee and only after that she was allowed to appear in the written and Viva-Voce test and, thereafter, she was found eligible to be appointed as Member by the Selection Committee. The same fact has also been reiterated in the Counter-affidavit filed by the State Government.

38. This Court concurs with the contention of the Opposite Party that Rule-10 of the Rules has been misinterpreted by the Petitioner. District Commission, Kandhamal and State Commission, Odisha are two distinct quasi-judicial bodies and totally separate establishments. It is wrong to say that appointment of the Opposite Party No.4 as Member (W) in the State Commission is the third term of appointment.

39. The Opposite party No.5 worked for two terms in District Forum, Sudargarh and Bhubaneswar does not debar her to be called for interview for the post of Member (W) in the State Commission. Therefore, all the conditions prescribe in the Rules are completely satisfied. Additionally, it is pertinent to mention here that as per the settled proposition of law, a

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candidate/applicant has to comply with all the conditions/eligibility criteria as per the advertisement before the cut-off date mentioned therein unless extended by the recruiting authority. The Supreme Court in the case of the ***State of Bihar & Ors. v. Madhu Kant Ranjan & Anr.***[3], has held that:

> *"As per the settled proposition of law, a candidate/applicant has to comply with all the conditions/eligibility criteria as per the advertisement before the cut-off date mentioned therein unless extended by the recruiting authority. Also, only those documents, which are submitted along with the application form, which is required to be submitted as per the advertisement have to be considered. Therefore, when respondent No.1 – original writ petitioner did not produce the photocopy of the NCC 'B' certificate along with the original application as per the advertisement and the same was submitted after a period of three years from the cut-off date and that too after the physical test, he was not entitled to the additional five marks of the NCC 'B' certificate."*

40. In the present case, the Opposite Party No.4 has acquired all the requisite qualification and experience prescribed in law and the testimonies thereof have been submitted before the last date of submission. Hence, she is fully eligible to participate in the selection test.

[3] Civil Appeal No. 7677 OF 2021 (Supreme Court)

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41. In light of the aforesaid discussion and the cases cited hereinabove, this Court finds no merit in the Writ Petition. Therefore, this Writ Petition stands dismissed being devoid of merit. No order as to costs.

(Dr. S.K. Panigrahi)
Judge

Orissa High Court, Cuttack,
Dated the 3rd July , 2023/B. Jhankar

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